

AMENDMENTS TO THE CALIFORNIA RULES OF COURT

Adopted by the Judicial Council on April 29, 2011,
effective on July 1, 2011, and July 1, 2012.

1	Rule 2.1040. Electronic recordings <u>presented or offered into</u> evidence	2
2	<u>Rule 3.835. Application</u>	5
3	<u>Rule 3.845. Form of mediator statements and reports</u>	5
4	Rule 3.895. Filing of <u>Statement of Agreement or Nonagreement</u> by mediator.....	5
5	Rule 3.897. Statistical information	6
6	Rule 3.1113. Memorandum	7
7	Rule 4.104. Procedures and eligibility criteria for attending traffic violator school .	7
8	Rule 5.118. Application for court order	9
9	<u>Rule 5.119. Live testimony</u>	10
10	Rule 5.670. Initial hearing; detention hearings; time limit on custody; setting	
11	jurisdiction hearing; visitation	12
12	Rule 8.104. Time to appeal	12
13	Rule 8.122. Clerk’s transcript	13
14	Rule 8.130. Reporter’s transcript	13
15		

1 **Rule 2.1040. Electronic recordings presented or offered into evidence**

2
3 **(a) Electronic recordings of deposition or other prior testimony**

- 4
5 (1) Before a party may present or offer into evidence an electronic sound or
6 sound-and-video recording of deposition or other prior testimony, the party
7 must lodge a transcript of the deposition or prior testimony with the court. At
8 the time the recording is played, the party must identify on the record the
9 page and line numbers where the testimony presented or offered appears in
10 the transcript.
11
12 (2) Except as provided in (3), at the time the presentation of evidence closes or
13 within five days after the recording in (1) is presented or offered into
14 evidence, whichever is later, the party presenting or offering the recording
15 into evidence must serve and file a copy of the transcript cover showing the
16 witness name and a copy of the pages of the transcript where the testimony
17 presented or offered appears. The transcript pages must be marked to identify
18 the testimony that was presented or offered into evidence.
19
20 (3) If the court reporter takes down the content of all portions of the recording in
21 (1) that were presented or offered into evidence, the party offering or
22 presenting the recording is not required to provide a transcript of that
23 recording under (2).
24

25 *(Subd (a) adopted effective July 1, 2011.)*

26
27 **(a)(b) Transcript of Other electronic recordings**

- 28
29 (1) ~~Unless otherwise ordered by the trial judge~~ Except as provided in (2) and (3),
30 before a party may present or offering into evidence any electronic sound or
31 sound-and-video recording not covered under (a), the party must tender
32 provide to the court and to opposing parties a typewritten transcript of the
33 electronic recording. The transcript must be marked for identification. A and
34 provide opposing parties with a duplicate of the transcript electronic
35 recording, as defined in Evidence Code section 260, must be filed by the
36 clerk and must be part of the clerk's transcript in the event of an appeal. The
37 transcript may be prepared by the party presenting or offering the recording
38 into evidence; a certified transcript is not required.
39
40 (2) For good cause, the trial judge may permit the party to provide the transcript
41 or the duplicate recording at the time the presentation of evidence closes or
42 within five days after the recording is presented or offered into evidence,
43 whichever is later.

(3) No transcript is required to be provided under (1):

(A) In proceedings that are uncontested or in which the responding party does not appear, unless otherwise ordered by the trial judge;

(B) If the parties stipulate in writing or on the record that the sound portion of a sound-and-video recording does not contain any words that are relevant to the issues in the case; or

(C) If, for good cause, the trial judge orders that a transcript is not required.

(Subd (b) amended and relettered effective July 1, 2011; adopted as part of unlettered subd effective July 1, 1988; amended and lettered as subd (a) effective January 1, 2003.)

(c) Clerk's duties

~~Any other~~ An electronic recording transcript provided to the jury court under this rule must also be marked for identification, and a duplicate A transcript provided under (a)(2) or (b)(1) must be filed by the clerk and made part of the clerk's transcript in the event of an appeal.

(Subd (c) amended and relettered effective July 1, 2011; adopted as part of unlettered subd effective July 1, 1988; amended and lettered as subd (a) effective January 1, 2003.)

(b)(d) Transcription Reporting by court reporter not required

Unless otherwise ordered by the trial judge, the court reporter need not take down ~~or transcribe~~ the content of an electronic recording that is presented or offered admitted into evidence.

(Subd (d) amended and relettered effective July 1, 2011; adopted as part of unlettered subd. effective July 1, 1988; amended and lettered as subd. (b) effective January 1, 2003.)

Rule 2.1040 amended effective July 1, 2011; adopted as rule 203.5 effective July 1, 1988; previously amended effective January 1, 1997; previously amended and renumbered as rule 243.9 effective January 1, 2003, and as rule 2.1040 effective January 1, 2007.

Advisory Committee Comment

This rule is designed to ensure that, in the event of an appeal, there is an appropriate record of any electronic sound or sound-and-video recording that was presented or offered into evidence in the trial court. The rules on felony, misdemeanor, and infraction appeals require that any transcript

provided by a party under this rule be included in the clerk's transcript on appeal (see rules 8.320, 8.861, and 8.912). In civil appeals, the parties may designate such a transcript for inclusion in the clerk's transcript (see rules 8.122(b) and 8.832(a)). The transcripts required under this rule may also assist the court or jurors during the trial court proceedings. For this purpose, it may be helpful for the trial court to request that the party offering an electronic recording provide additional copies of such transcripts for jurors to follow while the recording is played.

Subdivision (a). Note that, under Code of Civil Procedure section 2025.510(g), if the testimony at a deposition is recorded both stenographically and by audio or video technology, the stenographic transcript is the official record of that testimony for the purpose of the trial and any subsequent hearing or appeal.

Subdivision (a)(2). The party offering or presenting the electronic recording may serve and file a copy of the cover and of the relevant pages of the deposition or other transcript; a new transcript need not be prepared.

Subdivision (b). Note that, with the exception of recordings covered by Code of Civil Procedure section 2025.510(g), the recording itself, not the transcript, is the evidence that was offered or presented (see *People v. Sims* (1993) 5 Cal.4th 405, 448). Sometimes, a party may present or offer into evidence only a portion of a longer electronic recording. In such circumstances, the transcript provided to the court and opposing parties should contain only a transcription of those portions of the electronic recording that are actually presented or offered into evidence. If a party believes that a transcript provided under this subdivision is inaccurate, the party can raise an objection in the trial court.

Subdivision (b)(3)(C). Good cause to waive the requirement for a transcript may include such factors as (1) the party presenting or offering the electronic recording into evidence lacks the capacity to prepare a transcript or (2) the electronic recording is of such poor quality that preparing a useful transcript is not feasible.

Subdivision (c). The requirement to file a transcript provided to the court under (a)(2) or (b)(1) is intended to ensure that the transcript is available for inclusion in a clerk's transcript in the event of an appeal.

Subdivision (d). In some circumstances it may be helpful to have the court reporter take down the content of an electronic recording. For example, when short portions of a sound or sound-and-video recording of deposition or other testimony are played to impeach statements made by a witness on the stand, the best way to create a useful record of the proceedings may be for the court reporter to take down the portions of recorded testimony that are interspersed with the live testimony.

Chapter 3. General Rules Relating to Mediation of Civil Cases

1 **Article 1. ~~{Reserved}~~ Procedures for All Court Mediation Programs**

2
3 *Division 8, Alternative Dispute Resolution—Chapter 3, General Rules Relating to Mediation of Civil*
4 *Cases—Article 1, Procedures for All Court Mediation Programs; adopted effective July 1, 2012.*
5

6 **Rule 3.835. Application**

7
8 The rules in this article apply to all court mediation programs for general civil cases, as
9 defined in rule 1.6, unless otherwise specified.
10

11 *Rule 3.835 adopted effective July 1, 2012.*
12

13 **Rule 3.845. Form of mediator statements and reports**

14
15 If a mediator is required to submit a statement or report to the court concerning the status
16 or result of the mediation, the statement or report must be submitted on the Judicial
17 Council *Statement of Agreement or Nonagreement* (form ADR-100). The mediator's
18 completed form ADR-100 must not disclose the terms of any agreement or any other
19 communications or conduct that occurred in the course of the mediation, except as
20 allowed in Evidence Code sections 1115–1128.
21

22 *Rule 3.845 adopted effective July 1, 2012.*
23

24 **Advisory Committee Comment**

25
26 This rule does not preclude courts from asking mediators to provide other information about
27 court-program mediations on separate forms or surveys that do not request any information that
28 will allow identification of a specific case or mediation participant and that will not become part
29 of the court's case file.
30

31 **Chapter 4. Civil Action Mediation Program Rules**

32
33 **Rule 3.895. Filing of Statement of Agreement or Nonagreement by mediator**

34
35 Within 10 days after conclusion of the mediation, or by another date set by the court, the
36 mediator must complete, serve on all parties, and file a statement—on *Statement of*
37 *Agreement or Nonagreement* (form ADR-100)—advising the court whether the mediation
38 ended in full agreement or nonagreement as to the entire case or as to particular parties in
39 the case. If the mediation has not ended when the report is filed, the mediator must file a
40 supplemental form ADR-100 within 10 days after the mediation is concluded or by
41 another date set by the court. The completed form ADR-100 must not disclose the terms
42 of any agreement or any other communications or conduct that occurred in the course of
43 the mediation, except as allowed in Evidence Code sections 1115–1128.

1
2 *Rule 3.895 amended effective July 1, 2012; adopted as rule 1635 effective March 1, 1994;*
3 *previously amended and renumbered as rule 3.875 effective January 1, 2007; previously*
4 *renumbered effective July 1, 2009.*

5
6 **Rule 3.897. Statistical information**

7
8 **~~(a) — Quarterly information reports~~**

9
10 ~~Each court must submit quarterly to the Judicial Council pertinent information on:~~

11
12 ~~(1) — The cost and time savings afforded by mediation;~~

13
14 ~~(2) — The effectiveness of mediation in resolving disputes;~~

15
16 ~~(3) — The number of cases referred to mediation;~~

17
18 ~~(4) — The time cases were in mediation; and~~

19
20 ~~(5) — Whether mediation ended in full agreement or nonagreement as to the entire~~
21 ~~case or as to particular parties in the case.~~

22
23 **~~(b) — Submission of reports to the Judicial Council~~**

24
25 ~~The information required by this rule must be submitted to the Judicial Council~~
26 ~~either on the *Statement of Agreement or Nonagreement* (form ADR-100) and *ADR*~~
27 ~~*Information Form* (form ADR-101) or as an electronic database that includes, at a~~
28 ~~minimum, all of the information required on these forms. The format of any~~
29 ~~electronic database used to submit this information must be approved by the~~
30 ~~Administrative Office of the Courts.~~

31
32 **~~(c) — Parties and mediators to supply information~~**

33
34 ~~Each court must require parties and mediators, as appropriate, to supply pertinent~~
35 ~~information for the reports required under this rule.~~

36
37 **~~(d) — Alternative reporting method~~**

38
39 ~~On request, a court may report cases in mediation under the rules in this chapter~~
40 ~~under the appropriate reporting methods for cases stayed for contractual arbitration.~~

1 *Rule 3.897 repealed effective July 1, 2012; adopted as rule 1638 effective March 1, 1994;*
2 *previously amended effective February 9, 1999; previously amended and renumbered as rule*
3 *3.877 effective January 1, 2007; previously renumbered effective July 1, 2009.*
4

5 **Rule 3.1113. Memorandum**
6

7 **(a)–(h) *****
8

9 **(i) Copies of ~~non-California~~ authorities**
10

11 (1) A judge may require that if any authority other than California cases, statutes,
12 constitutional provisions, or state or local rules is cited, a copy of the
13 authority must be lodged with the papers that cite the authority and tabbed as
14 required by rule 3.1110(f).
15

16 (2) If a California case is cited before the time it is published in the advance
17 sheets of the Official Reports, the party must include the title, case number,
18 date of decision, and, if from the Court of Appeal, district of the Court of
19 Appeal in which the case was decided. A judge may require that a copy of
20 that case must also be lodged and tabbed as required by rule 3.1110(f).
21

22 (3) Upon the request of a party to the action, any party citing any authority other
23 than California cases, statutes, constitutional provisions, or state or local rules
24 must promptly provide a copy of such authority to the requesting party.
25

26 *(Subd (i) amended effective July 1, 2011; adopted as part of subd (e) effective January 1,*
27 *1992; previously amended effective July 1, 1997; previously amended and relettered as*
28 *subd (h) effective January 1, 2004, and as subd (j) effective January 1, 2007; previously*
29 *relettered as part of subd (f) effective July 1, 2000, and as subd. (i) effective January 1,*
30 *2008.)*
31

32 **(j)–(m) *****
33

34 *Rule 3.1113 amended effective July 1, 2011; adopted as rule 313 effective January 1, 1984;*
35 *previously amended and renumbered effective January 1, 2007; previously amended effective*
36 *July 1, 1984, January 1, 1992, July 1, 1997, July 1, 2000, January 1, 2003, January 1, 2004, and*
37 *January 1, 2008.*
38

39 **Rule 4.104. Procedures and eligibility criteria for attending traffic violator school**
40

41 **(a) *****
42

1 (b) **Authority of a court clerk to grant ~~pretrial diversion~~ a request to attend traffic**
2 **violator school**

3
4 (1) *Eligible offenses*

5
6 Except as provided in (2), a court clerk is authorized to grant a request to
7 attend traffic violator school when a defendant with a valid driver's license
8 requests to attend an 8-hour traffic violator school ~~as pretrial diversion~~ under
9 Vehicle Code sections 41501(a) and 42005 for any infraction under divisions
10 11 and 12 (rules of the road and equipment violations) of the Vehicle Code if
11 the violation is reportable to the Department of Motor Vehicles.
12

13 (2) ***

14
15 *(Subd (b) amended effective July 1, 2011; previously amended effective January 1, 2003,*
16 *September 20, 2005, January 1, 2007; and January 1, 2007.)*
17

18 (c) **Judicial discretion**

19
20 (1) A judicial officer may in his or her discretion order attendance at a traffic
21 violator school in an individual case ~~for diversion~~ under Vehicle Code section
22 41501(a) or 42005(b); ~~sentencing under Vehicle Code section 42005(a);~~ or
23 for any other purpose permitted by law. A ~~violation by a~~ defendant having a
24 class A, class B, or commercial class C driver's license or charged with a
25 violation that occurs in a commercial vehicle, as defined in Vehicle Code
26 section 15210(b), is not eligible ~~for diversion~~ to attend traffic violator school
27 under Vehicle Code sections 41501 or 42005.
28

29 (2) ~~If a violation occurs within 18 months of a previous violation that was~~
30 ~~dismissed under Vehicle Code section 41501(a), a judicial officer may order~~
31 ~~a continuance and dismissal in consideration for completion of a program at a~~
32 ~~licensed school for traffic violators as specified in Vehicle Code section~~
33 ~~41501(a). The program must consist of at least 12 hours of instruction as~~
34 ~~specified in section 41501(a). Under Vehicle Code section 1808.7, a~~
35 ~~dismissal for completion of the 12-hour program under this subdivision is not~~
36 ~~confidential.~~
37

38 (3)~~(2)~~ A defendant who is otherwise eligible for traffic violator school is not made
39 ineligible by entering a plea other than guilty or by exercising his or her right
40 to trial. A traffic violator school request must be considered based on the
41 individual circumstances of the specific case. The court is not required to
42 state on the record a reason for granting or denying a traffic violator school
43 request.

(Subd (c) amended effective July 1, 2011; amended and relettered as part of subd (b) effective January 1, 2003; previously amended effective January 1, 1998, September 20, 2005, January 1, 2007, and January 1, 2007.)

Rule 4.104 amended effective July 1, 2011; adopted as rule 851 effective January 1, 1997; previously amended effective January 1, 1998, July 1, 2001, January 1, 2003, September 20, 2005, and January 1, 2007; previously amended and renumbered effective January 1, 2007.

Advisory Committee Comment

Subdivision (c)(3)(2). Rule 4.104(c)(3)(2) reflects court rulings in cases where defendants wished to plead not guilty and have the court order attendance of traffic violator school if found guilty after trial. A court has discretion to grant or not grant traffic violator school. (*People v. Schindler* (1993) 20 Cal.App.4th 431, 433; *People v. Levinson* (1984) 155 Cal.App.3d Supp. 13, 21.) However, the court may not arbitrarily refuse to consider a request for traffic violator school because a defendant pleads not guilty. (*Schindler*, supra, at p. 433; *People v. Wozniak* (1987) 197 Cal.App.3d Supp. 43, 44; *People v. Enochs* (1976) 62 Cal.App.3d Supp. 42, 44.) If a judicial officer believes that a defendant's circumstances indicate that a defendant would benefit from attending school, such attendance should be authorized and should not be affected by the order in which the plea, explanation, and request for traffic violator school are presented. (*Enochs*, supra, at p. 44.) A court is not required to state its reasons for granting or denying traffic violator school following a defendant's conviction for a traffic violation. (*Schindler*, supra, at p. 433.)

Rule 5.118. Application for court order

(a)–(e) ***

(f) ~~The court may grant or deny the relief solely on the basis of the application and responses and any accompanying memorandum of points and authorities.~~

Declarations supporting applications for orders

(1) Length of declarations

A declaration attached to an order to show cause or notice of motion and responsive declaration must not exceed 10 pages in length, and a reply declaration must not exceed 5 pages in length, unless:

(A) The declaration is of an expert witness, or

(B) The court grants permission to extend the length of a declaration. A party may apply to the court ex parte with written notice of the application to the other parties, at least 24 hours before the papers are

1 due, for permission to file a longer declaration. The application must
2 state reasons why the facts cannot be set forth within the declaration
3 page limit.

4
5 (2) Objections to declarations

6
7 (A) A declaration must be based on personal knowledge and explain how
8 the person has acquired that knowledge. The statements in the
9 declaration must be admissible in evidence.

10
11 (B) If a party thinks that a declaration does not meet the requirements of
12 (A), the party must object to the declaration at the time of the hearing,
13 or any objection will be considered waived, and the declaration may be
14 considered as evidence.

15
16 (C) If the court does not specifically rule on the objection raised by a party,
17 the objection is presumed overruled. If an appeal is filed, any presumed
18 overrulings can be challenged.

19
20 *(Subd (f) amended effective July 1, 2011; adopted effective January 1, 2004.)*

21
22 *Rule 5.118 amended effective July 1, 2011; adopted as rule 1225 effective January 1, 1970;*
23 *previously amended and renumbered effective January 1, 2003; previously amended effective*
24 *January 1, 1972, July 1, 1977, January 1, 1980; and January 1, 1999, January 1, 2004, and*
25 *January 1, 2007.*

26
27 **Rule 5.119. Live testimony**

28
29 **(a) Purpose**

30
31 Under Family Code section 217, at a hearing on any order to show cause or notice
32 of motion brought under the Family Code, absent a stipulation of the parties or a
33 finding of good cause under (b), the court must receive any live, competent, and
34 admissible testimony that is relevant and within the scope of the hearing.

35
36 **(b) Factors**

37
38 A court must consider the following factors in making a finding of good cause to
39 refuse to receive live testimony under Family Code section 217:

40
41 (1) Whether a substantive matter is at issue—such as child custody, parenting
42 time (visitation), parentage, child support, spousal support, requests for

1 restraining orders, or the characterization, division, or temporary use and
2 control of the property or debt of the parties;

3
4 (2) Whether material facts are in controversy;

5
6 (3) Whether live testimony is necessary for the court to assess the credibility of
7 the parties or other witnesses;

8
9 (4) The right of the parties to question anyone submitting reports or other
10 information to the court;

11
12 (5) In testimony from persons other than the parties, whether there has been
13 compliance with Family Code section 217(c); and

14
15 (6) Any other factor that is just and equitable.

16
17 **(c) Findings**

18
19 If the court makes a finding of good cause to exclude live testimony, it must state
20 its reasons on the record or in writing. The court is required to state only those
21 factors on which the finding of good cause is based.

22
23 **(d) Minor children**

24
25 When receiving or excluding testimony from minor children, in addition to
26 fulfilling the requirements of Evidence Code section 765, the court must follow the
27 procedures in Family Code section 3042 and California Rules of Court governing
28 children's testimony.

29
30 **(e) Witness lists**

31
32 Witness lists required by Family Code section 217(c) must be served along with the
33 order to show cause, notice of motion, or responsive papers in the manner required
34 for the service of those documents. If no witness list has been served, the court may
35 require an offer of proof before allowing any nonparty witness to testify.

36
37 **(f) Continuance**

38
39 The court must consider whether or not a brief continuance is necessary to allow a
40 litigant adequate opportunity to prepare for questioning any witness for the other
41 parties. When a brief continuance is granted to allow time to prepare for
42 questioning witnesses, the court should make appropriate temporary orders.

1
2 **(g) Questioning by court**

3
4 Whenever the court receives live testimony from a party or any witness, it may
5 elicit testimony by directing questions to the parties and other witnesses.
6

7 *Rule 5.119 adopted effective July 1, 2011.*
8

9 **Rule 5.670. Initial hearing; detention hearings; time limit on custody; setting**
10 **jurisdiction hearing; visitation**

11
12 **(a)–(f) *****

13
14 **(g) Visitation**

15
16 **(1)** The court must consider the issue of visitation between the child and other
17 persons, ~~including siblings~~, determine if contact pending the jurisdiction
18 hearing would be beneficial or detrimental to the child, and make appropriate
19 orders.
20

21 **(2)** The court must consider the issue of visitation between the child and any
22 sibling who was not placed with the child, and who was taken into custody
23 with the child or is otherwise under the court’s jurisdiction, and enter an
24 order for sibling visitation pending the jurisdiction hearing, unless the court
25 finds by clear and convincing evidence that sibling interaction between the
26 child and the sibling is contrary to the safety or well-being of either child.
27

28 *(Subd (g) amended effective July 1, 2011; previously amended effective January 1, 2007.)*
29

30 *Rule 5.670 amended effective July 1, 2011; repealed and adopted as rule 1442 effective January*
31 *1, 1998; previously amended and renumbered effective January 1, 2007.*
32

33 **Rule 8.104. Time to appeal**

34
35 **(a)–(d) *****

36
37 **(e) Appealable order**

38
39 As used in (a) and ~~(e)~~(d), “judgment” includes an appealable order if the appeal is
40 from an appealable order.
41

42 *(Subd (e) amended effective July 1, 2011; adopted as subd (f); previously amended*
43 *effective January 1, 2005; previously relettered effective January 1, 2011.)*

1
2 *Rule 8.104 amended effective July 1, 2011; repealed and adopted as rule 2 effective January 1,*
3 *2002; previously amended and renumbered effective January 1, 2007; previously amended*
4 *effective January 1, 2005, January 1, 2010, and January 1, 2011.*

5
6 **Rule 8.122. Clerk’s transcript**

7
8 **(a) *****

9
10 **(b) Contents of transcript**

11
12 **(1)–(3) *****

13
14 **(4)** Unless the reviewing court orders or the parties stipulate otherwise:

15
16 **(A)** The clerk must not copy or transmit to the reviewing court the original
17 of a deposition except those portions of a deposition presented or
18 offered into evidence under rule 2.1040.

19
20 **(B) *****

21
22 *(Subd (b) amended effective July 1, 2011; previously amended effective January 1, 2007,*
23 *January 1, 2008, and January 1, 2011.)*

24
25 **(c)–(d) *****

26
27 *Rule 8.122 amended effective July 1, 2011; repealed and adopted as rule 5 effective January 1,*
28 *2002; previously amended and renumbered as rule 8.120 effective January 1, 2007, and as rule*
29 *8.122 effective January 1, 2008; previously amended effective January 1, 2003, January 1, 2005,*
30 *July 1, 2009, January 1, 2010, and January 1, 2011.*

31
32
33 **Rule 8.130. Reporter’s transcript**

34
35 **(a)–(g) *****

36
37 **Advisory Committee Comment**

38
39 *******

40
41 **Subdivision (f).** Subdivision (f)(1) requires the reporter to prepare and file additional copies of
42 the record “if multiple appellants equally share the cost of preparing the record. . . .” The reason
43 for the requirement is explained in the comment to rule 8.147(a)(2).

1
2 Implementing statutory provisions (e.g., Code Civ. Proc., § ~~269271, subd. (e)~~; Gov. Code, §
3 69954), subdivision (f)(4) requires the reporter to provide a party, on request, with a copy of the
4 reporter's transcript in computer-readable format. But in recognition of the fact that in some
5 instances the reporter may be unable to provide a copy in that format, the subdivision also
6 authorizes the reporter to apply to the superior court for relief from this requirement.
7